

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2024-CC-

ROSEA REYER ZUNIGA and
ANY UNKNOWN PARTY(s) IN POSSESSION,

Defendants.

COMPLAINT (CIVIL ACTION) SEEKING EVICTION AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, ROSEA REYER ZUNIGA and ANY UNKNOWN PARTY(s) IN POSSESSION, of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, ROSEA REYER ZUNIGA, is a natural person believed to own and reside in a mobile home located at 900 - 9th Avenue East, LOT #81, Palmetto, Manatee County, Florida, 34221.
4. Defendant, ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property located at 900 9th Avenue East, LOT #81, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.
5. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

6. The residents of the community, including Defendant, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723. A copy of the Prospectus approved by the Florida Department of Business and Professional Regulations is incorporated into this complaint and attached as Exhibit "A".

7. Plaintiff, as landlord, leased to Defendant, ROSEA REYER ZUNIGA, LOT #81, of the above stated mobile home park at a monthly rental fee. A copy of a Resident Application executed between the parties on March 8, 2015 is attached to this complaint as Exhibit "B".

8. For the year, 2024, the monthly rent is the sum of \$761.61. For the year, 2023, the monthly rent was \$718.50.

9. The Defendant failed to pay monthly rent for the month of March 2024, which including unpaid lot rent for previous months and late fees (which are additional rent), is as of the date of the filing of this complaint, in the total amount of \$2,992.13.

10. Defendant, ROSEA REYER ZUNIGA, is in default in the rental agreement with Plaintiff, by failure to pay the total sum of \$2,992.13 as of March 7, 2024.

11. On March 7, 2024, Plaintiff served on Defendants, ROSEA REYER ZUNIGA and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #81, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendant that if she failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "C".

12. On March 7, 2024, Plaintiff also served on Defendants, ROSEA REYER ZUNIGA and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, to the last known address of the Defendant, pursuant to Fla. Stat. § 723.061(4).

13. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for eviction against the Defendants.

14. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #81 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

15. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

16. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

17. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

18. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

19. The total lot rental amounts due as of May 7, 2024, is due, which must be paid into the registry of the Court, is \$2,992.13, plus \$761.61 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, ROSEA REYER ZUNIGA and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

20. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

21. Plaintiff re-alleges the facts contained within paragraphs 1 through 19 as though fully set forth herein.

22. In addition to unpaid rent, late fees, costs and a reasonable attorney fee, the Defendant ROSEA REYER ZUNIGA has failed to pay the sum of \$749.85 in utilities fees.

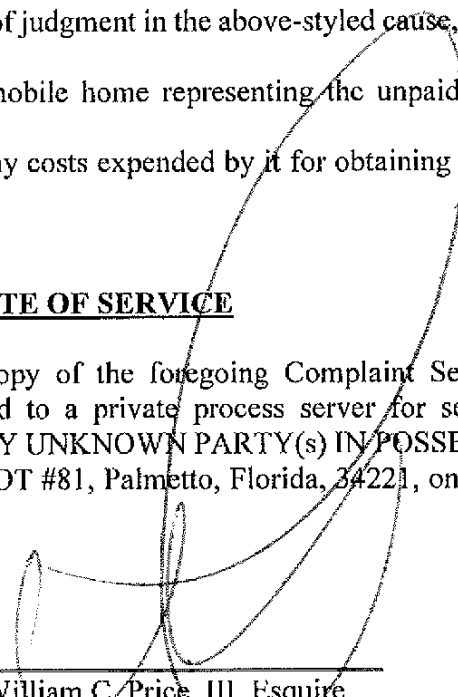
23. Defendant, ROSEA REYER ZUNIGA, owes the Plaintiff the sum of rent and utilities as of the date of filing this complaint, plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, ROSEA REYER ZUNIGA, for damages, costs, and attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, ROSEA REYER ZUNIGA and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, LOT #81, Palmetto, Florida, 34221, on this 26th day of March, 2024.



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